



MERALCO INDUSTRIAL ENGINEERING SERVICES CORPORATION

5/F Renaissance Tower 1000, Meralco Avenue, Ortigas
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MEMO-04032024-MIE

Date: *April 3, 2024*

To: **Business Unit Group Heads**
EPC
DUS
Telcomms
UAM
Support Group

Thru: **RICARDO L. CONCEPCION**
Head, Corporate Labor Relations

WILFREDO P. BERNARDO
Head, Operations Group

From: **ATTY. ARCHIMEDES G. ROBILLOS**
Head, Labor Relations

ATTY. KRISSELLE ARMI S. UMINGAN
Lead, Labor Relations

Re: **GUIDELINES ON DISCIPLINARY PROCESS**

WHEREAS, MEMO-08022021-MIE issued by Labor Relations on August 2, 2021, provides that:

“If the appropriate penalty is Reprimand and/or Suspension according to our Company Code on right Employee Ethics and Discipline (CREED), the Business Unit has primary disciplinary authority over the employee.”

“If the appropriate penalty is possibly Dismissal according to our CREED, the Business Unit shall refer the case to Labor Relations for appropriate action.”

WHEREAS, Corporate Labor Relations formulates this guideline on the disciplinary process of minor infractions and reporting to the Labor Relations of offenses subject to dismissal.

NOW THEREFORE, in view of the foregoing, it is hereby provided that the following shall serve as the **Guidelines on Disciplinary Process** by Business Unit Group Heads:



A. What are Minor Infractions –

All offenses under the CREED that merit the penalty of Reprimand or Suspension. These offenses do not involve questions of fact or any doubt as to truthfulness or certainty of the facts and circumstances of the alleged infractions committed.

A complete list of minor infractions is attached herein as Annex A.

B. Timelines on Disciplinary Processes for Minor Infractions –

The entirety of the disciplinary process for minor infractions shall be for a period of **fifteen (15) days**, broken down as follows:

- | | |
|---|--|
| 1. Spot reporting and drafting of Incident Report. | 3 days from the date of the actual incident |
| 2. Service of Notice to Explain to employee | 1 day |
| 3. Submission of written explanation of the employee and conduct of optional conferences | 5 days
2 days conferences |
| 4. Recommendation of disciplinary action by Team Leader or Immediate Supervisor | 1 day |
| 5. Approval of Recommendation by next level Head | 1 day |
| 6. Concurrence to the Recommendation by Area/Group or Business Unit Head | 1 day |
| 7. Service of Notice of Decision and Furnishing a copy to the Labor Relations and HR (201 File) | 1 day |

C. What are offenses subject to Dismissal –

All offenses under the CREED with a corresponding penalty of Dismissal or of a penalty range of Suspension to Dismissal, depending on the gravity of the offense. These offenses involve questions of fact and/or of law, or where doubt arises as to the truthfulness of the facts alleged. Said offenses also require further investigation of the Corporate Labor Relations.

Moreover, if the offense was committed on the fifth instance within a 12-month period, under Section 11 paragraph 3 of CREED, it shall be likewise considered as an



offense subject to dismissal. Thus, the offense must be reported to Labor Relations for appropriate action.

A complete list of offenses subject to dismissal is attached herein as Annex B.

D. Timelines on the Disciplinary Processes for Offenses subject to the penalty of Dismissal –

The Incident Report (IR) must state the name of the employee/s involved, the date, time and place of the incident, the details of the incident, the immediate action taken, and other necessary documentation in support of the allegations in the IR.

The IR must be submitted to the Labor Relations **within ten (10) days** from the date of the actual incident or the date of the discovery of the incident.

For your information and guidance.

Cc.

Office of the President

Office of the Head, Operations Group

HR Shared Services

HRBP



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ANNEX A

Enumerated below is the list of minor infractions subject to the disciplining authority of the Business Unit Group Heads.

Section 3 - Attendance and Punctuality

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
Tardiness for five (5) times, or an accumulated tardiness of one hundred (100) minutes, whichever comes first, within any thirty (30)-day period shall constitute excessive tardiness and shall be considered as a single and separate violation. Five (5) minutes at most is allowed as a grace period for latecomers.	Reprimand	3-day suspension	5-day suspension	10-day suspension
Unauthorized and unexcused absences from work for one-half (1/2) day or at most (2) days shall be considered as simple absences.	Reprimand	5-day suspension	10-day suspension	15-day suspension
In cases where the unauthorized and unexcused absence from work extends for more than two (2) but not more than five (5) consecutive working days, these shall be considered as multiple absences. Note: A minor infraction only for the first to third offense	5-day suspension	10-day suspension	15-day suspension	Dismissal
Failure to time-in and time-out in the assigned time capture device two (2) times within a 30-day period.	Reprimand	3-day suspension	5-day suspension	10-day suspension



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Going on sick leave without having first personally secured previous authorization from a Company doctor or Company retained physician and failing to notify his supervisor of his absence due to illness within 24-hours from the first date of such leave.	1-day suspension	3-day suspension	5-day suspension	15-day suspension
Extending the original period of sick leave previously authorized without prior authorization or justifiable reason	The same penalties provided for multiple absence or excessive absences.			
Non-conformity with the company's sick leave policy, including unjustified refusal to undergo physical examination or diagnostic procedures as required	Reprimand	1-day suspension	3-day suspension	5-day suspension
Leaving house confinement while on sick leave against the express orders of the Company physician or Company-retained physician.	1-day suspension	3-day suspension	5-day suspension	15-day suspension

Section 4 - Work Performance and Standard

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
Leaving work area, loafing, loitering, sleeping, or performing personal matters while on duty	Reprimand	1-day suspension	3-day suspension	5-day suspension
Failure to wear prescribed uniform and/or to properly display/ present company I.D. while on duty or within company premises	Reprimand	1-day suspension	3-day suspension	5-day suspension



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Failure to disclose or update company required information within the prescribed period or within thirty (30) days from effective date of such change or status.	Reprimand	1-day suspension	3-day suspension	5-day suspension
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Section 5 - Employee Behavior

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
Engaging another employee or other persons in a fight or prodding or goading another employee or person to engage in a fight during working time and/or within company premises. Note: Report to Labor Relations on the Fourth instance.	5-day suspension	10-day suspension	15-day suspension	Dismissal
Using abusive, threatening, or profane language or showing gross disrespect to any person during working time and/or within company premises.	Reprimand	1-day suspension	3-day suspension	5-day suspension
Harassing or retaliating against a whistle blower or witness Note: Report to Labor Relations on the Second instance.	30 calendar days suspension	Dismissal		
Possession or use of firearms, deadly weapons, or hazardous	30 calendar days suspension	Dismissal		



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materials within Company premises or during working time Note: Report to Labor Relations on the Second instance.				
Drinking of alcoholic beverages and/or performing work under the influence of alcoholic beverages during working time or on Company premises, except on Company-authorized occasions or areas Note: Report to Labor Relations on the Third instance.	10-day suspension	15-day suspension	Dismissal	
Unfitness for work as a result of excessive of alcoholic beverages Note: Report to Labor Relations on the Third instance.	5-day suspension	15-day suspension	Dismissal	
Smoking in non-designated areas.	1-day suspension	3-day suspension	5-day suspension	15-day suspension
Refusal to submit to reasonable inspection conducted within Company premises by authorized Company personnel.	1-day suspension	3-day suspension	5-day suspension	30-day suspension

Section 8 – Use of Company Property

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
Hitchhiking in Company trucks, pick-ups, vans, jeeps and similar operating vehicles except with the	1-day suspension	3-day suspension	5-day suspension	15-day suspension



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previous authority of the Office Manager to which the vehicle is assigned. In such cases, the employee who allowed such hitchhiking without authority, the employee driver/user and the employee hitchhiker shall all be liable				
Parking one's car or motorized vehicle within the Company compound in prohibited or no parking zone.	Reprimand	1-day suspension	3-day suspension	5-day suspension
Driving recklessly and exceeding the speed limit using company vehicles regardless of place	Reprimand	1-day suspension	3-day suspension	5-day suspension
Loading and transporting personal effects/cargo in company vehicles without any authority.	Reprimand	1-day suspension	3-day suspension	5-day suspension
Operating, without previous authority, or tinkering with Company properties, such as motor vehicles, operating machines, computer hardware, communication equipment and special tools or equipment Note: Report to Labor Relations on the Fourth instance.	3-day suspension	20-day suspension	15-day suspension	Dismissal
Failure by the operator, driver or user to report immediately any damage to or defects of Company properties	1-day suspension	3-day suspension	5-day suspension	15-day suspension



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Section 9 - Hiring and Assignment of Relatives

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
No person shall be hired if he/she already has a total of two (2) relatives in the company within the 3rd civil degree of consanguinity or affinity, including first cousins	Reprimand	1-day suspension	3-day suspension	5-day suspension



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Enumerated below is the list of offenses that must be submitted to the Labor Relations within 10 days from the commission of the offense, the date of the actual incident or the discovery of the incident.

Section 3 - Attendance and Punctuality

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
Unauthorized and unexcused absences from work that exceed five (5) consecutive working days shall constitute excessive absences.	Dismissal			

Section 4 - Work Performance and Standard

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
Acts or omissions constituting negligence or carelessness causing loss, damage or prejudice to the Company or resulting in death or injury to persons.	Reprimand to dismissal, depending upon the gravity of the offense. (For damage to property or injury to persons, refer to ANNEX "A" of the CREED.)			
Failure on the part of an employee who has knowledge of any violation of this Code and/or any Company rule or policy to take steps to prevent and/or report the same.	Reprimand to dismissal, depending upon the prejudice caused to the company.			
Gross and habitual neglect by the employee of his duties.	Dismissal			

Section 5 - Employee Behavior

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
Engaging another employee or other persons in a fight or prodding or goading another employee or person to engage in a fight during working time	5-day suspension	10-day suspension	15-day suspension	Dismissal



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and/or within company premises Note: Report to Labor Relations only on the Fourth instance.				
Planting evidence or imputing a false offense or discreditable act against another employee	30 calendar days Suspension or Dismissal depending upon the prejudice caused.			
Harassing or retaliating against a whistle blower or witness Note: Report to Labor Relations only on the Second instance.	30 calendar days suspension	Dismissal		
Immoral conduct, lewd and/or inappropriate advances, not falling under sexual harassment, during working time and/or within company premises or during a company-sanctioned event.	Suspension or dismissal, depending upon the gravity of the offense			
Sexual harassment, as defined by law, committed in a working, educational or training environment by one with influence, authority, or moral ascendancy against another during working time and/or within company premises or during company-sanctioned event	Suspension or dismissal, depending upon the gravity of the offense			
Exhibiting or distributing pornographic materials during working time and/or within company premises	Suspension or dismissal, depending upon the gravity of the offense			



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or during a company-sanctioned event.				
Vandalism, deliberate destruction or damage to Company property regardless of place or time	Two degrees higher than the penalties in Annex A			
Assaulting or intentionally causing physical injuries to another person committed during working time and/or within company premises	30 calendar days Suspension to Dismissal, depending upon the gravity of the offense			
Possession or use of firearms, deadly weapons, or hazardous materials within Company premises or during working time Note: Report to Labor Relations on the Second instance.	30 calendar days suspension	Dismissal		
Drinking of alcoholic beverages and/or performing work under the influence of alcoholic beverages during working time or on Company premises, except on Company-authorized occasions or areas Note: Report to Labor Relations only on the Third instance.	10-day suspension	15-day suspension	Dismissal	
Entering company premises and/or reporting for work under the influence of liquor	Suspension or dismissal, depending upon the gravity of the offense			
Unfitness for work as a result of excessive of alcoholic beverages	5-day suspension	15-day suspension	Dismissal	



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Note: Report to Labor Relations on the Third instance.				
Participating in any illegal narcotic or drug transaction such as pushing, possessing, using, or causing to be brought or used, narcotic drugs into Company premises, except when such drugs take the form of medicine prescribed by a physician			Dismissal	
Violation of the Company's Solicitation and Gift Policy			Reprimand to dismissal, depending upon the gravity of the offense	
Soliciting or receiving money, gift, share, benefits or favor from any person, or through the mediation of another as a condition for the performance of one's duty or to perform a act prejudicial to the Company			Dismissal	
Willful disobedience by the employee of the lawful orders of his superior in connection with his work			Dismissal	
Misappropriating, or withholding, Company funds			Dismissal	
Directly or indirectly tampering with electric meters or metering installations, introducing unauthorized service connections, or installing any device and/or means of electric pilferage or irregular electric consumption			Dismissal	
Theft of property belonging to another person committed during working			Dismissal	



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time or on company premises or company property regardless of place or time	
Falsifying timesheets or time records/data; making or allowing erroneous of time data; swiping or scanning the identification card (ID) of another. The employee who induced, allowed or benefited from the foregoing act shall suffer the same penalty	Dismissal
Knowingly giving false or misleading information/documents or concealing material facts which cause or tend to cause prejudice to the company such as disclosure requirements of the company, application for employment, benefits and the like.	Dismissal
Knowingly giving untruthful statements or concealing material facts in an investigation conducted by authorized representatives of the Company	Dismissal
Commission of a crime or offense by the employee against the person of his employer or his duly authorized representatives	Dismissal
Forming, operating or attempting to form or operate within the company, any credit union, loan association, or any other similar organization	The employee will be made to desist or, if an association to disband, otherwise he (they) will be dismissed.



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Intentionally introducing computer viruses and/ or unauthorized deleting/ altering applicable systems or programs	Suspension to dismissal, depending upon the gravity of the offense
Violation of the Social Media Policy.	Reprimand to dismissal, depending upon the gravity of the offense
Violation of safety rules, regulations and general safety practices promulgated by the company	Penalties shall be covered by the Company Safety Handbook
Unauthorized representation and/ or defamation that will affect Company's identity.	Suspension to dismissal, depending upon the gravity of the offense.
Any improper act, omission, conduct or behavior analogous to the provisions of this rule and prejudicial to the interests of the Company.	Reprimand to dismissal, depending upon the gravity of the offense.

Section 6 - Confidentiality of Work and Information

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
Hacking or cracking, or unauthorized access, use, removal, publication, concealment, importation, deletion, alteration, copying, reproduction, modification, storage, uploading or downloading documents, information and/ or programs which may be prejudicial to the Company or otherwise infringes upon intellectual property or data privacy rights	Suspension to dismissal, depending upon the gravity of the offense.			



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Without proper authority, revealing, releasing, transferring, or divulging confidential information or data to individuals other than authorized persons.	Suspension to dismissal, depending upon the gravity of the offense.
Fraud or willful breach by the employee of the trust reposed in him by his employer or duly authorized representative	Dismissal

Section 7 - Conflict of Interest

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
Having any participation or involvement, direct or indirect, in any transaction involving any person, firm, corporation or any business enterprises with which the Company, directly or indirectly, has commercial relationship, where such participation or involvement is improper or undesirable in the interest of the Company	Suspension to dismissal, depending upon the gravity of the offense.			
Trading of stocks covered by the Black Out Policy	Suspension to dismissal, depending upon the gravity of the offense.			

Section 8 - Use of Company Property

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
Operating, without previous authority, or tinkering with Company properties, such as motor vehicles, operating machines, computer hardware, communication equipment and special tools or equipment	3-day suspension	20-day suspension	15-day suspension	Dismissal



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Note: Report to Labor Relations on the Fourth instance.				
Sharing of access privileges (e.g. System log-on, log-on user I.D., and the like)	Reprimand to dismissal, depending upon the gravity of the offense.			
Unauthorized use, lending or improper care of Company property.	Reprimand to dismissal, depending upon the gravity of the offense.			

Section 9 - Hiring and Assignment of Relatives

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
Intentional non-disclosure of relatives within 3rd degree of consanguinity or affinity employed in the Company upon application for employment	Suspension to dismissal, depending upon the gravity of the offense.			

Section 10 – Voluntary Separation

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
Failure on the part of an employee voluntarily separating from the company to serve a 30-day advance written notice and to continue working during the said period.	Dismissal			